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Unions without Borders: Organizing and Enlightening Immigrant Farm Workers

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Abstract

Farm workers pose special problems for union organizing due to their legal status, their high rates of turnover, their employment through subcontracts, and the temporary and seasonal dimensions of farm work. Yet by organizing farm workers, unions have developed and refined strategies that point to methods of meeting the challenges of contemporary work environments in and out of agriculture. This includes organizing workers across fragmented space, whether transnational or transregional, and organizing workers who are sifted into production regimes via subcontractual relationships. This paper examines two farm worker unions – the Farm Labor Organiz-

ing Committee and the Coalition of Immokalee Workers – in terms of their successes and failures with farm labor organizing. It finds that boycotts, the use of fine arts, balancing local and transnational interests, and building relationships based on *confianza* (trust) are critical to the formation and maintenance of effective union organization.

Keywords: farm workers, labor organizing, transnational unions

Introduction: Challenges of Labor Organizing in Contemporary Work Environments

Since the 1970s, many work sites have become increasingly fragmented through several dislocating

processes, with multiple crews of workers sifted into production regimes by different threads and production sites dispersed over the globe. Immigrant workers have become a cornerstone of many of fragmented work settings, often hired into temporary positions via subcontracts, occupying segregated segments of plant and industrial occupational hierarchies, or performing specialized tasks that isolate them from other parts of a production regime's labor force. Whether working as a subcontracted farm worker in North Carolina's cucumber fields, in a *maquiladora* in Monterrey, Mexico, or in construction in New York, migrants confronting fragmented work sites have developed alternative allegiances and ways of making their lives more whole. These can include joining churches, forming soccer leagues, interacting with an ever wider variety of businesses and organizations outside of work environments, and participating in the civic life of one's community through schools, volunteer work, or other venues.

Parallel developments occurring in many immigrant destinations have been the several attempts to organize and enlighten immigrants in specific communities, bringing immigrants and other community members together in schools, churches, during community celebrations, and at other non-work venues; in these settings it has been possible to teach immigrants about the resources available in local areas to address problems regarding health, language, education, housing, workers' rights, or legal status. Such networks of people and organizations interested in immigrants' rights exist in most communities experiencing new immigration across the rural United States, although they vary by levels of organization, dedication, and power. Immigrants who interact with these networks typically add to their knowledge about their rights in the communities where they reside (which may be greater, practically speaking, than their rights under federal statutes) and their human rights, including knowledge about sanctuaries from persecution, legal aid, and defense against discrimination and exploitation.

Immigrants tend to benefit most from those organizations dedicated specifically to fighting for the rights of workers, minorities, the homeless, or the downtrodden generally, as opposed to those organizations, such as public schools, whose staff address tenant, worker, gender, and human rights violations incidentally. Labor unions fall into the first category, and two that have been particularly active among immigrants are the Farm Labor Organizing Committee (FLOC) and the Coalition of Immokalee Workers (CIW). Although both focus on farm workers, the majority of whom are recent immigrants, these organizations can provide important lessons for labor organizing generally among immigrants – particularly immigrants working in settings where they are

sifted unevenly into production regimes through subcontracting arrangements, such as construction workers and janitors (Zolniski 2006).

The coalition, the committee, and the United Farm Workers (UFW)

Briefly, the CIW is an organization comprised of approximately 2,500 Latino, Haitian, and Mayan workers in and around the southwestern Florida agricultural community of Immokalee. It grew out of a 1992 partnership between Florida Rural Legal Services and the local Catholic Church's Guadalupe Center – both organizations dedicated to providing legal, social, and other forms of support and assistance to the massive winter farm working population that annually swells Immokalee's population from a few thousand to over 30,000. Although initially formed and still based in Immokalee, the constant movement of its members between Immokalee and the harvests of the north, as well as its international linkages to migrant sending regions of Latin America and the Caribbean, extends its reach beyond southern Florida. Their achievements have included securing raises in tomato piece rates, signing agreements to improve wages and working conditions with Subway, McDonalds, and Burger King, revealing slavery in agricultural labor settings and marshalling anti-slavery campaigns, and drawing attention to pesticide exposure and other occupational risks.¹

Formed earlier than the CIW, FLOC dates to 1967, when former farm worker Baldemar Velasquez organized several farm workers to protest their wages and working conditions in the tomato and cucumber harvests of Michigan and Ohio, although it was not until 1979 that they formally organized as a labor union affiliated with AFL-CIO. Their affiliation with American Federation of Labor and Congress of Industrial Organizations (AFL-CIO) may have derived from FLOC's innovative use of the boycott, a strategy I discuss in more detail below. Early in FLOC's history, they began targeting major food companies instead of individual farms or farmers, marshalling their first campaign against Campbell's Soup in 1978. This campaign lasted eight years, but resulted in a labor contract with Campbell's in 1986 that, according to FLOC's history, "change the structure of the agricultural system, putting all parties [corporations, growers, farmworkers] on equally footing in negotiating relationships and benefits, under the mediation of a labor relations board representing all parties in the contract" (<http://www.floc.com>, accessed April 12, 2009). The contract with Campbell's was quickly followed by the signing of similar contract with Heinz and other large food companies. In 1999, FLOC moved from the Midwest to the South, initiating the campaign against Mt. Olive Pickle in North Carolina

that I discuss in greater depth later in this paper and that was, in 2004, successful in representing 8,000 Mexican guest workers (Griffith 2006).²

Both CIW and FLOC have remained independent of the UFW, the most famous union of farm workers in the United States – founded by Cesar Chavez with the help of Delores Huerta and others during the 1960s and successful at organizing campaigns against growers and distributors of grapes in California and citrus in Florida. Their reasons for remaining independent of UFW are unclear, but they may be due to their founders' perceptions that their methods and the circumstances of their members differ in significant ways from those of UFW. Their methods are the subject of further discussion later in this paper, but here I point out that the vast majority of the memberships of CIW and FLOC are comprised of foreign nationals who have been working legally or illegally in the United States for relatively short time periods, whereas UFW's members are more likely to be long-time U.S. residents even if working in the U.S. agriculture illegally. In addition, many California growers circumvented the UFW's influence by hiring farm workers through labor contractors shortly after Chavez's initial success, undermining the UFW's ability to negotiate directly with growers; in Florida, the UFW's success remained confined to an agreement with one company – Minute Maid, which was owned by Coca Cola and extremely sensitive to negative publicity.

Challenges to farm labor organizing

Several features of farm working populations make them challenging targets for the organizing efforts of labor unions. First, farm workers are primarily immigrants with limited legal rights in the United States and may be reluctant to participate in organizations, such as labor unions, that have been the targets of political and cultural assaults from offices as high as the U.S. presidency (Newman 1995). Farm work has been, historically, one of the first sectors of the economy where the newest and most vulnerable immigrants find work.³ According to the most recent National Agricultural Worker Survey (NAWS 2005:19), only 23 percent of the nation's estimated 2,000,000 farm workers in 2001 were born in the United States, 17 percent of the hired farm labor force have worked in U.S. agriculture for less than one year, and an additional 16 percent have performed farm work for less than three years. Slightly over half (53%) of U.S. farm workers are not authorized to work in the United States.

Second, farm work is subject to high turnover. Around 20 percent of current farm workers do not expect to stay in farm work for more than five years and nearly 40 percent report that they would have no

trouble finding a job outside of agriculture, indicating that they have explored alternatives (NAWS 2005:29). In recent research on the decline of the tobacco industry in North Carolina (Griffith 2008), I found that farmers were more negatively affected than farm workers, because farm workers had been moving into the construction industry as tobacco employment evaporated. By contrast, as the economic crisis deepened through 2008, many North Carolina construction workers lost their jobs and sought work, once again, in agriculture, some moving to Florida in the late fall and winter.

Third, farm workers are notoriously mobile, migrating from crop to crop, from place to place, and between agricultural and nonagricultural jobs through the year. Again, the NAWS reports that 42 percent of the nation's farm workers are migrants and about one-third of those migrate between their home country and the United States. A corollary to migration is that their work is usually temporary, seasonal, and interrupted by several different kinds of weather conditions.

Finally, about one in five farm workers are employed by labor contractors instead of directly by farmers, and this proportion has doubled since the mid-1990s. Farm labor contractors tend to be anti-union, practice a variety of schemes for recovering portions of their wage bills (e.g., deducting from workers' pay for rent, equipment, and food; indenting workers), often control workers' housing and transportation, and attempt to keep farm workers isolated from legal aid, social services, and labor unions.⁴ Just as hiring temporary workers is on the rise, sifting workers into production regimes through contractual relationships is becoming more common across the economy, with similar consequences (Zolniski 2006).

The conditions of work in U.S. agriculture thus create circumstances that draw farm workers' experiences and farm worker consciousness in several directions, inhibiting the sustained interaction that unions often need in their organizing efforts. As just noted, other industrial sectors have been replicating these conditions in their labor processes as well, particularly the trend toward hiring temporary workers and relying on subcontracting as critical parts of the production process. Thus the work of FLOC and CIW are important in that they have achieved some success in organizing this inherently difficult-to-organize group of workers.

How have they accomplished this? Their methods converge with at least one powerful strategy – boycotting the products of well known companies like Campbell's Soup, known in labor circles as a "corporate strategy," targeting the corporation that benefits from the commodity being produced rather than the direct employer – as well as in their use of the fine arts in organizing, yet they have diverged slightly

in other areas. Prior to examining their labor organizing strategies, I discuss the two settings where FLOC and CIW encountered, enlisted, organized, and benefited their members.

Immokalee, Florida: Winter Gateway to the U.S. Farm Labor Force

Situated in southwest Florida, inland from Ft. Meyers in Collier County, Immokalee is a farming community whose population swells annually from a few thousand residents during the summer to between 30,000 and 40,000 temporary foreign immigrant farm workers during the winter harvest season, beginning in October or November and lasting until March or April. Most of these farm workers today are new immigrants, arriving from Mexico, Central America, and the Caribbean, or the children of immigrants or domestic migrants who have moved into farm labor contracting, social services, or other positions providing goods and services to the farm working population. Featured in the opening scene of Edward R. Murrow's 1967 documentary film about U.S. agricultural labor, *Harvest of Shame*, the town's reputation as a center for shaping up agricultural crews on the town's streets and parking lots is as accurate today as it was in the 1960s (Griffith *et al.* 1995; Rothenberg 1998; Williams and Fortuny 2007).

Through the early Twentieth century, inland Collier County was a marshy wilderness inhabited primarily by Seminole and Mikasuki Native Americans, plume hunters, cattle ranchers, and others subsisting along the margins of Florida's economy, only becoming a winter vegetable production region during the 1930s and 1940s. African Americans supplied most of the labor for this early production, many of whom were bound to the agricultural labor force through debt peonage and other forms of bondage (Daniel 1972). During the 1950s, Florida's agricultural labor force began to witness the immigration of people from Texas and Louisiana who had been displaced from the mechanization of sugar beets and cotton, which interrupted seasonal migrant itineraries and forced many to seek new sources of employment. The U.S. Employment Service initiated some of these migrant flows, referring African-American and Latino workers to Florida-based labor contractors for the winter months. Oral histories collected in the early- and mid-1990s, during studies of the U.S. farm labor force and the use of children in agriculture, encountered some of these Latino and African-American migrants; the majority of the Latinos interviewed reported arriving as children and being the only Latino families in the area (Kissam *et al.* 2001; Griffith 2007). These Latino families, most of them originally from Texas, founded some of the first Latino labor contracting businesses that have since played a sig-

nificant role in agricultural labor markets all along the eastern seaboard (Hahamovich 1995; Griffith *et al.* 1995; Kissam *et al.* 2001).

With the Cuban revolution and the economic embargo against Fidel Castro's government beginning in the early 1960s, both sugar and vegetable acreage expanded across south Florida as Cuban farmers were cut out of competition. As winter vegetable production increased, supplemented by the southern expansion of citrus acreage in southern Florida following a 1962 freeze that devastated much of central Florida's citrus, the region became a major destination for newly arriving immigrants from Mexico, Central America, and the Caribbean. Also during the 1960s, African Americans began aging out of the farm labor force or finding alternative occupations with the expansion of educational and employment opportunities that followed civil rights victories. Latino workers moved into jobs that African Americans left as well as competed for jobs that the few remaining African Americans still held. While African American labor contractors and crews continued to work in agriculture through the 1970s, by the mid-1980s the crews were becoming nearly entirely foreign-born. Subsequent freezes in the 1980s resulted in another significant southern migration of citrus within Florida, much of it moving into drained swamplands of southern Collier County, just south of Immokalee.

The late 1970s civil war in Guatemala and widespread poverty and violence in Haiti during the 1980s led to additional refugee flows, further diversifying Immokalee's already growing population of new immigrants from Mexico and Mexican-Americans from other parts of the United States. This ethnically mixed population provided the manpower for both winter vegetable and citrus production in Florida. During the late spring, summer, and fall months, Immokalee's migrant crews moved into central and northern Florida through Georgia, the Carolinas, Virginia, Maryland, Pennsylvania, and on up to New England and upstate New York. Just a few of the crops that migrant crews originating in Immokalee harvested were tomatoes and mushrooms in Quincy, northern Florida; Vidalia onions throughout Georgia; strawberries and blueberries in the Carolinas; peaches and apples along the Blue Ridge mountains; tomatoes and melons on the Delmarva peninsula; and apples and vegetables in the finger lakes region of upstate New York (Commission on Agricultural Workers 1992; Griffith *et al.* 1995).

As with many parts of the United States experiencing high immigration, the 1986 Immigration Reform and Control Act (IRCA) influenced Immokalee's farm labor force in profound ways and, by extension, affected agricultural labor all along the eastern seaboard. After IRCA's passage, approxi-

mately 1.7 million foreign-born immigrants were work authorized under the Act's Special Agricultural Worker (SAW) provisions; workers only needed to show that they had worked in agriculture for 90 days in each of the three years before 1986. Immokalee farm workers were especially well-placed to take advantage of the SAW provisions, their applications facilitated by a network of Qualified Designated Entities (QDEs, or those agencies authorized to process SAW applications), most of which were based in organizations sympathetic to immigrants' rights.

Once work authorized, former undocumented workers could cross borders freely and spread two important messages across Mexico, Central America, and the Caribbean in terms of Immokalee's farm labor force: (1) that to become legalized in the United States it was best to be working and living in the United States before any new immigration reform law was enacted; and (2) that work was available in the rural eastern United States, including Immokalee and those northern agricultural labor markets that Immokalee supplies. A social structural development that accompanied these messages was an increasingly sophisticated network of human smugglers and traffickers (e.g., the infamous *coyotes* on the Mexico-U.S. border), labor contractor/recruiters, and underground human transporters, often called *raiteros*, that take groups of undocumented immigrants from border regions to interior locations in the United States where they can find work. The sophistication of the network derived from its ability to link labor recruitment, smuggling, transporting, and contracting into a single system that allowed individuals with few or no network ties in the United States to migrate and find work, often indebting themselves to one or more members of the network for the resources to make the journey north. Thus individuals with little to no social capital could end up in Immokalee, where they came to depend on labor contractors or one of several organizations in Immokalee, including CIW, that address the problems of the poor (Payne 2000; Williams and Fortuny 2007).^{5,6}

The CIW emerged as one of many organizations whose leadership were concerned with the rights of farm workers. Organized early with the help of former Peace Corps volunteers Greg Asbed and Laura Germino, the organization has grown steadily since 1992. They have been able to tap into Immokalee's sophisticated network of "gente con consciencia" (people of conscience - Payne 2000: 89) in Immokalee, which has grown more or less in tandem with the farm working population and its persistent poverty.

Southeastern North Carolina: H-2s and Contracted Labor as a Response to Latinization

Tobacco, pickling cucumbers, strawberries, blueberries, and sweet potatoes provide more or less

continual work in southeastern North Carolina agriculture from late April through the dog days of summer and into the early fall. Although migrants from Florida have been moving into and through North Carolina for several decades (Hahamovich 1994), developments following IRCA changed the state's rural landscapes significantly; with those changes came enhanced opportunities for immigrants that have been important forces in shaping FLOC's campaign. Most importantly, North Carolina became a "new immigrant destination" in the years following IRCA, with employment in poultry and pork processing drawing many farm workers out of agriculture and allowing them to settle in the region. The Latino population, through the 1990s, grew by over 400 percent. With increased Latino settlement, ethnic entrepreneurs emerged, opening *tiendas* (stores) and other Latino businesses that provided multiple services to immigrants living and passing through the region - money transfers, immigration and consulate information, travel services, and a wide range of packaged and prepared foods that appealed to Latino populations.

Along with this development, as occurred in many "new destinations" across the United States, formerly young, single males, now settling out of migrant streams, began to bring girlfriends, wives, children, and in some cases elderly family members from Mexico and Central America, elaborating the Latino presence in schools, churches, shopping centers, and health care centers. These developments paved the way for increasing interest, on the part of native North Carolina residents, in the welfare of new immigrants. Organizations that formerly dealt exclusively with Latino farmworkers - the Episcopal Hispanic Farm Worker Ministry, for example - began devoting efforts to serving the needs of settled Latinos, although the continued presence of Latino farm worker in North Carolina (as in Virginia and elsewhere - see Bump 2001) conveyed to many the myth that Latinos were merely transient presences in the state. In reality, the increasing settlement of Latinos in the state has led to the Latinization of large part of rural North Carolina, particularly in areas - such as the southeast - that are home to large numbers of confinement animal operations and their associated packing plants. These areas are also within commuting distance of Wilmington and New Hanover and Brunswick Counties - one of the fastest growing regions in the United States and currently drawing on a large Latino labor force for construction, services, and golf course maintenance.

The availability of alternative work for Latino farm workers in North Carolina has had two impacts on farm labor in the state: first, North Carolina became one of the largest importers of H-2 workers

(legal, temporary “guestworkers” carrying H-2 class visas – Griffith 2006) to work in tobacco, cucumbers, sweet potatoes, and, further west, Christmas trees; second, North Carolina growers rely heavily on farm labor contractors, most with ties to Florida agriculture. H-2 workers cannot legally leave the farms they are contracted to work for, and hence do not present the problems to growers associated with farm workers who leave agriculture for construction or other trades. Farm labor contractors tend to exert controls over farm workers who prevent them from leaving agriculture as well. Neither the H-2 program nor the power of labor contractors prevents 100 percent of H-2 or contract farm workers from leaving agriculture, but they do cut down on the rate of farm worker loss to employers.⁷ Most H-2 workers in North Carolina are brought into the state through a labor contracting organization known as the North Carolina Growers Association (NCGA).

The core of FLOC’s membership in North Carolina are H-2 workers. This occurred because H-2 workers comprised the majority of cucumber workers that FLOC targeted in their boycott of Mt. Olive Pickle. It may have also been the case that H-2 workers were more likely than non-H-2 farm workers to remain in agriculture and hence remain in a labor union with Farm Labor in its name. As noted below, however, the contract that FLOC signed with the NCGA may pose problems for the union in the future. First, however, I focus on the two unions’ recent successes: the use of boycotts, fine arts, and targeting transnational workers.

Boycotts

CIW marshaled its first successful boycott against Taco Bell, an effort that lasted around 10 years and resulted in a five-cent per bucket increase in piece rates in Florida tomatoes. In North Carolina, after signing agreements with Campbell’s Soups, Heinz Pickles, and other corporate entities in the Midwest, FLOC boycotted Mt. Olive Pickle for several years, eventually signing a contract with the NCGA.⁸ As with the UFW, who organized Florida farm workers after successes in California primarily by focusing their efforts on Minute Maid Orange Juice (owned by Coca-Cola), both CIW and FLOC were able to capitalize on the sensitivity to negative publicity of companies like Taco Bell (part of the YUM family of restaurants that includes Pizza Hut and Kentucky Fried Chicken) and Mt. Olive Pickle. Such corporate regard for their positive public image is the critical point of corporate campaigns. These boycotts were notable for their targeting of specific commodities as well as companies – tomatoes for CIW, pickling cucumbers for FLOC – in that, as I write in my book on guestworkers (Griffith 2006:216), “specific commodi-

ties, as Marx pointed out, embody specific social relations.” Far more poignantly, Miriam Wells (1996:278) makes a similar point in her work on strawberry sharecroppers in California:

When [strawberry growers and workers] look out over the terrain of production, they see not only its economic dimensions: the serrated furrows, the clusters of stoop-backed workers, and the fruit-laden trucks wending their ways to market. They see also its political dimensions: the motorcycles and closed vans of the *migra* pulling up unexpectedly at the edge of the fields, the straggling lines of picketers along country roads, the union rallies and politicians’ urgent commentaries on the evening news, and the white-shirted officials who stop by their ranches to check on the ages, or wages, or sanitary facilities of their workers.

As unions force firms producing a specific commodity to recognize them and deal with their members, they alter the social relations of production to replace the highly exploitative practices that usually dominate agricultural labor relations with more equitable ones. “Different firms producing the same commodities,” I wrote (Griffith 2006:216), “compete with one another, which encourages them to adopt similar production practices.” Firms forced to sign union contracts will, ironically, advocate for unions among their competitors in their attempts to increase the costs of production to their competitors and thus level their playing fields (which was why FLOC was able to secure agreements with Heinz and other food companies after signing with Campbell’s). Although they fought hard against the union for several years, once they signed the contract with FLOC, the NCGA began using the contract as a marketing tool. At a small evening meeting on agricultural labor organized by Johnston County Cooperative Extension Service, an NCGA spokesperson claimed that any one hiring H-2 workers through an organization other than them would be sued by North Carolina legal aid, arguing that their union contract with FLOC insulated them from similar law suits (Griffith 2008).

The two unions’ use of the boycott raises an issue explicitly cited by Durrenberger (2007) in his review of the anthropology of labor unions: that union organization and action can be viewed in terms of social movement theory. Durrenberger draws here on Charles Tilly’s ideas of “repertoires of collective action” and Sidney Tarrow’s “repertoires of contention,” but equally relevant are EP Thompson’s views of organized social movements that invoke moral economies. Thompson’s (1971) early work on the moral economy focused on the role of the poor in protesting the adulteration and rising cost of bread

during the Eighteenth century, marshalling collective action against grain farmers, millers, bakers, and others involved in bread making when they came to believe that their rights to quality bread were being curtailed or violated. Thompson's work is particularly relevant to FLOC and CIW's use of the boycott because they attempted to bring community pressures to bear on Mt. Olive Pickle and Taco Bell in ways that invoked what they argued was "proper" economic behavior (paying a living wage). The notion of propriety is a critical component of moral economic sentiments – or "a general sense that economic behavior should conform to what is considered proper, just, correct, or fitting" (Griffith forthcoming), regardless of market or political economic developments.

Community pressures derived from enlisting long time community members, particularly those with moral stakes in the community, such as clergy, into union campaigns. Payne (2000), for example, notes that CIW have drawn heavily on local clergy as well as college students to help with their campaigns. Similarly, I was able to participate in a march from Mt. Olive to Raleigh with FLOC that, along the way, received assistance from churches and enlisted a Duke University-based organization called Student Action for Farmworkers (SAF). Through such efforts, unions have been able to promulgate their ideas to the wider community about what is "proper" economic behavior – paying a living wage, keeping work sites safe, providing benefits, et cetera. By contrast, most arguments against moral economic sentiments draw on the notion of the free market (e.g., demand for pickles dictates pickle prices which dictates what the company can pay workers).

Use of fine art

Along with boycotts, both CIW and FLOC rely on the fine arts to convince farm workers of the value of organizing. During an early meeting with farm workers in Immokalee, a prominent union organizer showed a cartoon he had drawn that depicted a donkey complaining about having to work for the going piece rate in tomatoes (at that time around 30 to 35 cents per bucket), implying that the piece rate at the time was not even fit for a beast of burden.⁹ Another cartoon, reproduced in Payne (2000), depicts a farm worker stooped over a bucket of tomatoes with a labor contractor on his back and a grower standing above the labor contractor; the contractor is paying the farm worker a coin while receiving a bill from the grower. The cartoon also invokes a beast of burden, its caption reading (in Spanish):

"Fellow Worker: What do you think? It's the truth, this is how we are! We do all the work and they pay us pennies, while those who do not

work earn dollars. We carry them as if we were donkeys, and they live off our sweat. Don't you think it's time to raise the price of a bucket [of tomatoes]? Organize yourselves to make a change" (Payne 2000: 95).

The CIW leadership was well aware, from personal experience as well as research on farm workers in general and on Immokalee farm workers in particular (Griffith *et al.* 1995), that many farm workers have low levels of formal education and, although intelligent, have difficulty with the written word. In this sense, the use of the visual arts is particularly important. While political cartoons have always been a way to package serious messages in humor and cartoon images, the recent growth in the popularity of graphic novels – many quite dark (Speigelman 1986, 2006) – has helped to legitimate story-telling cartoons as a form of serious expression, as opposed to the *Archie* and *Fantastic Four*-type comics available to an earlier generation of viewer-readers. Along with cartoons, CIW uses videos and virtual tours on its website to promote its cause. Increasingly, as Lynn Stephen (2007) shows us in her work in Oregon, farm workers are accessing Internet technologies.

FLOC also relies heavily on videos and other visual materials in its organizing campaigns, but one of its most important tools for spreading its message of human rights, workers' rights, and immigrants' rights has been music. FLOC's founder and principal leader, Baldemar Velazquez, has written and produced a CD called, "Justice Has No Boundaries," that features "Urbano's Song," a song about a farm worker who became dehydrated working in a North Carolina field and whose field supervisors left him to die rather than carried to a hospital. Baldemar uses the song and the album to enlighten audiences from potential FLOC members to potential donors and supporters among politicians and academics, again realizing that many farm workers are either illiterate or very nearly illiterate.

Local versus transnational organizing

Although CIW and FLOC both draw on the fine arts and on boycotts to achieve their ends, the locations of their organizing have been somewhat different. Both unions have international memberships, yet CIW has focused on a local setting – Immokalee, Florida – while FLOC has, from its beginning, engaged in transnational organizing throughout Mexico and the United States. FLOC's transnational organizing has not, however, diverted it from understanding the importance of local settings and local concerns, nor has CIW's local focus diverted it from understanding the importance of national and international trends. Instead, CIW has adopted more of a bottom-up

approach to organizing, while FLOC is slightly more top-down.

The transnational in the local

CIW, as its name implies, is tied to Immokalee. Two relevant points made in the previous description of Immokalee were that Immokalee's farm labor force is ethnically and nationally quite mixed, with workers coming from Mexico, Central America, and the Caribbean, and that its history as an impoverished community of farm workers has led to the creation of a network of organizations that provide services to poor, immigrant families. This network is among the most sophisticated and well-developed in the United States, including organizations providing health and child care services to working poor families, free food and clothing, free legal assistance, spiritual guidance, and mental health therapy – along with, of course, the efforts to raise class consciousness and empower workers through the organization of workers into the CIW.

Immokalee's international significance derives from the 30,000 and 40,000 farm workers who crowd into the town's many rundown neighborhoods and labor camps. In 2004, Williams and Fortuny (2007) found Immokalee's immigrants came from all 31 of Mexico's states along with significant numbers from Haiti and Guatemala. These statistics are similar to those documented by Griffith *et al.* (1995) in the early 1990s and Payne (2000) in the late 1990s. Farm workers in Immokalee may live in ethnically homogeneous or ethnically mixed labor camps or neighborhoods, in housing owned or controlled by labor contractors or simply local landlords, but the town's dense clusters of farm worker housing and its few locations where farm workers gather to board buses for work, shop, or spend their few leisure hours mean that daily interaction across ethnic and national lines is inevitable.

Negotiating Immokalee's ethnic diversity and the space of its international connections, as well as circumventing the control of labor contractors and other employers, has been one of the principal hurdles that CIW has overcome. They have accomplished this by networking with local organizations providing services to farm workers and providing farm workers and their families alternatives to work sites or labor camps to gather, interact, and express their views (Payne 2000). Through networking and providing alternative spaces, CIW is able to reach out to and educate farm workers about their rights, offer them some relief from the presence of agricultural employment, and, most importantly, establish interethnic and international linkages known as "bridging" social capital (Williams and Fortuny 2007: 247–250). Once educated and taught the importance of solidarity across ethnic and national lines, farm workers from Immokalee fan out into northern harvests, re-

turn to their home communities, or work in jobs outside of agriculture. Hence, while most organizing efforts occur in Immokalee, these workers carry CIW's message across state and national boundaries and, in some cases, from agricultural to nonagricultural settings, increasing the scope of CIW influence across North America. By organizing locally, CIW nevertheless opens pathways to the transnational.

Mexican organizing for the U.S. pickle corridor

In April of 2007, FLOC organizer Rafael Santiago Cruz, at age 29, was beaten to death in his office in Mexico, allegedly for investigating how labor recruiters of H-2 workers in Mexico were using their positions to demand kickbacks and bribes from farm workers and potential farm workers. Cruz's murder was indicative of the multifaceted nature of FLOC's transnational organizing efforts and their continued work on behalf of their members on both sides of the border; he refused to restrict his efforts to labor organizing alone, instead looking into practices that he knew could, and did, get him killed. This transnational organizing is important as a model for other labor unions in industries that draw heavily on immigrant populations, such as meatpacking, cleaning services, and construction.

In the case of North Carolina cucumber workers, organizing in Mexico has been important because of the level of control that the NCGA, employers, and supervisors, historically, have had over H-2 workers. In an article on Mexican migration into North Carolina, I related a case where, during the course of a single weekend, I interviewed an undocumented immigrant from Mexico who freely volunteered the information that she was without legal documentation and a couple carrying H-2 visas from whom extracting information approached a form of ethnographic dentistry (Griffith 2005). The reticence of the H-2 workers reflected the level of control, and concomitant fear, under which they live in the United States, afraid that their interactions with outsiders could get them fired. As I learned in my work in Mexico with H-2 workers, it is far easier to elicit information from them in the safety of their home communities, out of earshot of the NCGA, employers, or supervisors, than it is to elicit information from them in U.S. labor camps.¹⁰

Like CIW, which began locally but spread transnationally, FLOC's transnational organizing does not discount local settings or local problems. Indeed, they tend to target local settings, such as southeastern North Carolina, in their organizing efforts, careful to address issues related to immigrant rights and human rights in those settings while continuing to organize across borders. They are currently involved in a campaign to increase the rights of tobacco workers in North Caro-

lina, targeting R. J. Reynolds. This is occurring, moreover, as the U.S. tobacco industry undergoes some of its most profound changes since the 1930s, with the dismantling of government price support programs and the growth of contract tobacco production. Within this newly structured setting, North Carolina tobacco farms have increased in size and fallen in number, mechanization has expanded, and tobacco farm workers have been among the first to suffer from the industry's contraction (Benson 2008; Griffith 2008, forthcoming). Given these conditions, FLOC's commitment to social justice is particularly needed.

FLOC's website (<http://www.floc.com>) acknowledges that they are both "a social movement and a labor union." It goes on to say, "Our immediate constituency is migrant workers in the agricultural industry, but we are also involved with immigrant workers, Latinos, our local communities, and national and international coalitions concerned with justice." From this perspective, FLOC's interests clearly diverge from those of the NCGA, a labor contracting organization with ties to the recruiting network responsible for Rafael Santiago Cruz's murder. In this sense they meet the first of Durrenberger's (2007:73) five criteria for effective union representation: "Unions are most effective when workers do not accept management paradigms of shared interests."

Nevertheless, FLOC's agreement with the NCGA may have placed them in a ticklish position regarding workers' rights and point to the possibility of unions holding contradictory positions *vis-à-vis* management, sharing some interests while clearly at odds with others. During the 1990s, NCGA emerged as the principal labor contracting agency to import H-2 workers into North Carolina and other parts of the Eastern United States. Their stake in the H-2 visa-holding population is such that they are adamantly opposed to alternatives to the current H-2 program, even though many practices within the H-2 program have been notoriously abusive and exploitative, at times replicating slave labor conditions (Griffith 2006; Southern Poverty Law Center 2007). In so far as FLOC supports NCGA's position on H-2, this brings FLOC into opposition with other groups that support the rights of farm workers, such as the Farmworker Justice Fund and the UFW. Both of these groups have been trying to develop alternatives to H-2, or guest-worker programs that are designed with more protections for workers.

Summary and a cautionary note

While FLOC' and CIW' present important models for raising class consciousness through labor organizing and work, their current strength – Latino workers – is also potentially their weakness. With recent proposals to expand guestworker programs such

as the H-2 program, and with the general expansion of the H-2 program after IRCA, new labor contracting organizations have emerged that specialize in non-Spanish-speaking immigrants, particularly from Asian locations, allowing employers to shop the world for labor. While such workers are not likely to completely displace Latino workers from the rural factories and fields across the United States in the near future, it is likely that few observers of East Coast farm labor during the 1950s and 1960s predicted the nearly complete displacement of African-American farm workers by Latino farm workers over the past thirty years. One result of this displacement was that many of the service providers (e.g., Migrant Head Start teachers) who had learned their trade early in this process were unprepared, culturally or linguistically, to deal with the new Latino farm workers. The current emphasis of FLOC and CIW on Latino workers may leave them unprepared in the event that Latino farm, factory, and other workers shrink into the shadows of labor forces composed of the Hmong, Balinese, Chinese, or – who knows? – maybe even the Tasady.

Conclusion: The Construction of *Confianza* (Trust) among Transnational Workers

I opened this paper with the observation that, as work sites become more fragmented – in part from the coming and going of immigrants – organizations, agencies, and communities often join immigrants in rising to the challenge of making immigrants' lives more whole. FLOC and CIW have assumed this role in southeastern North Carolina and Immokalee in ways that have reached into communities across Mexico, Central America, and the Caribbean. They have accomplished this, I argue, with strategies that combine tried and true methods of union organizing with new and somewhat nuanced interactions with union memberships and the communities where they work.

Boycotting corporate entities and using the fine arts are neither unique to FLOC or CIW nor particularly new. During Cesar Chavez's prolonged campaign against California growers, boycotts of table grapes and Safeway Supermarkets were equally successful in securing labor contracts for UFW (as was the boycott of Minute Maid mentioned earlier), and the United Food and Commercial Workers (UFCW), local P9, in Austin, Minnesota, marshaled less successful boycotts of banks that lent money to the meatpacker Hormel (Hage and Klauda 1989). In terms of the fine arts, the enduring works of Sinclair's (1908) *The Jungle* and Steinbeck's (1939) *The Grapes of Wrath* were influential in raising general awareness about labor relations and working conditions in food processing and agriculture during the early part of the

Twentieth century, as have been the photographs of Dorothy Lange, documentaries like *Harvest of Shame*, the ballads of Woody Guthrie, and the radio broadcasts and writings of Studs Terkle.

Nevertheless, the successful use of these methods by FLOC and CIW merits attention at the current historical moment, especially when considering how they may be useful to campaigns involving transnational workers, fragmented work environments, subcontracting, and temporary, seasonal employment. As noted earlier, among the factors that led to the decline in membership and power among the UFW, for example, was the growth of labor contracting in the aftermath of the union's success, allowing California growers to access farm labor indirectly, without acknowledging that they had any workers working for them at all. Although the UFW were unprepared at the time to deal with this development, FLOC and CIW have dealt with the labor contracting issue by negotiating an agreement with them (in the case of FLOC) or by circumventing them (in the case of CIW). I noted earlier that FLOC's partnership with the NCGA, however, may become problematic in the future, particularly if they continue supporting the NCGA as other pro-worker entities call for a new guestworker program that includes expanded worker protections. Given the enlightened attitude of FLOC leader Baldemar Velazquez, it is unlikely that they will continue to side with the NCGA as such a development occurs, yet their dependence on H-2 workers as the core of their membership base structurally predisposes them to supporting H-2.

The CIW, by contrast, has focused on circumventing labor contractors by expanding the venues in which they recruit and educate members to their organization to include churches, student organizations, and other community organizations across Immokalee and southern Florida; providing alternatives to work sites where their members can gather; promoting civic participation; creating "social capital for the purpose of enhancing its political potential" (Williams and Fortuny 2007:248); and organizing across ethnic and national lines. These multiple strategies have been effective in creating a social solidarity within the union and trust among its members. At the same time, they replicate the development of a multifaceted and partially integrated social infrastructure that immigrants often take years to build.

Perhaps more instructive than either the use of the boycott or the use of fine arts has been the two unions' promotion of moral economic principles, a strategy similar, in theory and in practice, to developing political capital through "bridging" social capital (Williams and Fortuny 2007). This involves the building of trust among not only union members but among their families in Mexico and Central America,

members of the community such as clergy, and people who work in other agencies and organizations that are interested in the human rights of immigrants. Promoting moral economic principles – or working to develop a consensus that certain economic behaviors are proper and others improper, regardless of developments in markets – and developing social capital both involve establishing relationships based on trust. These relationships may be between the union and its members, among union members themselves, between the union and non-union community leaders, and so forth. These developments signal a confluence of recent interests in the social sciences and union strategy, in that both social scientists and union strategists have come to understand the importance of embedding economic behavior and economic concerns in wider social fields and cultural sentiments.

Leaders of FLOC and CIW view their unions as dedicated to far more than raising wages or piece rates, protecting members' interests, or improving working conditions. Along with these practices, the two unions address wider community concerns and raise awareness about the plights of immigrants and the rural poor. The attention that social and cultural capital have received over the past few decades, moving from marginal to central status within sociology and anthropology, has led to study after study demonstrating the importance of social infrastructure and shared cultural understandings among individuals without access to financial capital or other economic resources. Social and cultural capital do not always benefit members of social groups, however, at times leading to demands on one's time or resources that prevent individuals within networks from achieving economic goals. In some cases, immigrants take advantage of other members of their social networks or ethnic groups by providing goods and services at exorbitant prices or offering them employment at reduced wages, realizing profits from the social and cultural isolation and lack of knowledge that some immigrants face. Clearly, many co-ethnic labor contractors acquire their wealth precisely through these practices.

By contrast, cultivating relations of trust along with moral economic sentiments among immigrants often provides the stimulus for social and cultural capital to generate beneficial outcomes to individuals within groups. In interviews with North Carolina Latino business owners conducted through the fall of 2008 and into 2009, I found that one theme to emerge again and again was *confianza* – trust – and that it was used to describe two types of relationships: those between family and friends who enabled business owners to establish their businesses, and those between business owners and their customers. In this sense, it is equivalent to a moral economic sentiment, cultivating loyalty and solidarity in settings where

immigrants continue to be targets of suspicion and government surveillance. By focusing on building of *confianza* among their members, FLOC and CIW have tapped into a significant moral economic undercurrent and principle of effective organizing.

Equally significant, the transnational dimension of both FLOC and CIW may serve as an important model for the UFW and other labor organizing, formal and informal, in economic sectors that rely heavily on immigrant labor. Currently, the increasingly globalized labor force noted in the opening paragraphs of this paper is being buttressed by the expansion of managed migration programs in receiving countries like Canada, Spain, Germany, the United Kingdom, and the United States and sending countries like the Philippines, Mali, Mexico, El Salvador, and Jamaica (Newland, Rannveig Agunias, and Terrazas 2008).¹¹ At an international level, labor organizations like CIW and FLOC – along with government agencies, NGOs, and other organizations involved in managed migration programs – are replicating the local concerns for immigrant welfare that I noted early in this paper, forging legal bases to protect workers' rights and advocate on behalf of workers in both sending and receiving nations. As I mentioned in my brief overview of the two unions, neither FLOC nor CIW has become affiliated with the UFW, even though the UFW remains a powerful farm workers' union and a powerful symbol of farm worker solidarity and power.¹² Yet the UFW, perhaps in response to the success of FLOC, created its own guest worker program in 2006, signing an agreement with a national labor contractor (Growers Labor Services) not unlike the agreement between FLOC and NCGA and stating on its web page that, "The UFW has been working in Mexico and Thailand with worker organizations, those governments and the US Embassies to weave together a just and legal recruitment system" (<http://www.ufw.org>, accessed April 27, 2009). Their focus on recruitment in the context of management migration derives from the notoriously corrupt practices that accompany guest worker recruitment in sending countries, practices that resulted in the murder of FLOC organizer Rafael Santiago Cruz.

However, with the increasing involvement of a variety of organizations – unions, NGOs, government agencies, et cetera. – in managed migration, there is some promise for advocacy for workers' rights moving from the focus on recruitment to more general awareness campaigns that engage not only transnational farm workers but domestic farm workers in sending countries like Thailand, Mexico, and the Philippines. This is critical in light of the globalization of food production and its dominance by a handful of multinational companies supported by free trade agreements that have encouraged many members of

peasant and small scale food producing households to become international labor migrants. Ironically, many farm workers' earnings, in the form of remittances coming from the United States, Canada, and other developed countries to communities throughout Mexico, Honduras, and other developing countries, are used to maintain small scale, local food production (Griffith 2006). In so far as the labor that generates these remittances primarily benefits large-scale agribusiness, without the intervention of unions, NGOs, and sending and receiving governments, we are unlikely to witness any abatement of the despair that afflicts most temporary workers and their families today.

Notes

- 1 In 2005, three immigrant farm-working women living in Immokalee gave birth to children with severe deformities. Two of the children died and a third lives without either arms or legs. The deformities were presumed to have been caused by pesticide exposure in the fields of North Carolina – a destination that Immokalee workers often migrate to during the summer tobacco and cucumber harvests.
- 2 Guest workers are authorized to work in the United States for temporary periods; those organized by FLOC carried H-2A visas and worked primarily in cucumbers. Currently FLOC is attempting to organize workers in tobacco.
- 3 This is changing as more and more immigrants have network ties to individuals working in other parts of the U.S. economy, particularly construction, yet the NAWS makes it clear that agriculture remains an immigrant-absorbing sector of the economy, despite the receptivity to new immigrants now found in other economic sectors.
- 4 Over a quarter of a century of research on farm workers, I have been confronted by dozens of farm labor contractors grilling me about the nature of my business with "their" workers. During a particularly heated summer of FLOC organizing in the 1990s, labor contractors who interrupted my interviews with farm workers asked specifically whether or not I was with the union. During one nearly fatal incident a farm labor contractor threatened to "turn me into fertilizer" because I was driving a car the same color of the current FLOC organizer; farmers and labor contractors in the area had been alerted to be on the look out for such a car.
- 5 Social capital derives from relationships such as network ties and refers to the use of these relationships for economic and political gain.
- 6 These include organizations attached to churches, such as the Guadalupe Center and the Redlands Christian Migrant Association, as well as those attached to government or quasi-government agencies, such as Florida Rural Legal Aid.
- 7 I have argued elsewhere (Griffith 2006) that working off the H-2 contract can be viewed as form of resistance to the confines of their terms of employment, although at

times they are assisted in this activity (although it is illegal) by their legal employers, who do not like idleness in workers any more than the workers themselves. In terms of labor contractors, I have documented cases (Griffith 2007) of crew members leaving crews with the assistance of nonagricultural employers, much to the chagrin of labor contractors.

- 8 Since signing the agreement, however, many of these farmers have shifted away from using H-2 workers and the NCGA, moving toward the use of farm labor contracted workers or other labor contracting organizations.
- 9 Although it is unlikely that the organizer intended his cartoon to resonate with Democratic Party symbolism (and their historical linkage to labor organizing), it is likely that he used the image of a donkey to satisfy his own need to draw upon a larger historical trend, knowing too that the donkey has been an important image of burden among Latin American *campesinos*, perhaps most famously carrying Juan Valdez's coffee beans to market for Folgers Coffee. Many cartoonists, of course, imbue their cartoons with multiple meanings.
- 10 Many of the labor camps of H-2 workers are situated on private farm property and hence inaccessible without permission and some, like the large camp in Winchester, VA, which was a POW camp during World War II, are guarded and closely monitored, allegedly to keep out prostitutes and drug dealers.
- 11 Not all managed migration takes place in the context of an actual "program" – if, by program, we mean an agreement signed by sending and receiving nations to manage the flow of migrants and serve oversight functions. The most notable example of this are so-called H-2 programs in the United States, which are actually simply visas for work authorization that are issued to temporary foreign workers without government-to-government agreements.
- 12 I thank an anonymous reviewer of this paper for many of the insights regarding the lack of formal ties between UFW and FLOC and CIW, and its implications for farm labor organizing in general.

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Fishing for a Living but Catching HIV: AIDS and Changing Patterns of the Organization of Work in Fisheries in Uganda

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Abstract

Over the last decade evidence has emerged suggesting that fisherfolk, as an occupational group, are at greater risk to human immunodeficiency virus (HIV) than other groups in many countries, including Uganda. In this paper we argue that the organization of work in fisheries on Lake Victoria, both now and in the past, encourages patterns of sexual behavior among men and women involved in fishing, trading, and servicing the industry which over the last 20 years has promoted the spread of the HIV among those working in fisheries. We use a case study of a family, Kiwanuka's, to illustrate how patterns of be-

havior practiced in the past (by Kiwanuka) have much more disastrous consequences now (for his children) because of the existence of HIV. Kiwanuka was a fisherman on Lake Victoria during the 1960s. During that time fish were plentiful and he earned enough to purchase land and establish himself as a coffee farmer. Two of his sons are currently employed as daily laborers at the lake. They complain of poor fish catches and their inability to make money. One daughter, who is HIV-positive, is a dried fish trader. This family's experience illustrates the far-reaching effects of economic and health conditions generated by the fishing industry on distant rural areas and